

25PSCV03240 25PSCV03240

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F02%2F2026

Source SHA-256: e866cbea5a48d3fc61fcbba7a01e3223e89b1b3209e26f972f98519d71f13ed1

Case Number: 25PSCV03240 Hearing Date: July 2, 2026 Dept: H

Hsu v. Dinalux

Associates, LP,

Case No. 25PSCV03240

ORDER ON MOTION

TO SET ASIDE DEFAULT

Defendant Dinalux Associates,

LP's Motion to Set Aside Clerk's Default Pursuant to Code of Civil Procedure §§ 473(b) and 473.5 is DENIED.

Background

Plaintiff

Danny Hsu

("Plaintiff")

alleges as follows:

Plaintiff

is a tenant of the commercial premises located at 750 Terrado Plaza Suite 48 in Covina ("subject premises"), pursuant to a written rental agreement with Dinalux Associates, LP ("Defendant"). In January 2022, Plaintiff first provided notice to Defendant that the building roofs had a hole and that ongoing water damage was compromising the subject premises. Defendant failed to perform any repairs at that time or thereafter, despite Plaintiff's notice to Defendant in or around October 2023 that toxic mold was growing on the interior walls and ceilings and numerous times in or around February 2025 that conditions were worsening and adversely affecting his health. While Defendant provided

Plaintiff with a temporary office in Suite 52 in February 2025, this space did not have an adequate network/telephone infrastructure and workspace. On April 2, 2025, Plaintiff underwent a Low Dose CT (LDCT) thorax examination, which revealed multiple lung nodules opined by Plaintiff's treating physician to be caused by long-term inhalation of particulate matter and bacteria from the subject premises.

On

September 8, 2025, Plaintiff filed a complaint, asserting several causes of action against Defendant and Does 1-20, including, among others, causes of action for breach of contract, breach of covenant of quiet enjoyment, constructive eviction, intentional infliction of emotional distress, and negligence.

On

December 2, 2025, Defendant's default was entered.

An

Order to Show Cause Re: Default Judgment is set for August 11, 2026.

Legal

Standard

Code of Civil Procedure

section 473, subdivision (b)

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment

or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. . ." (Code Civ. Proc., § 473, subd. (b).)

Code of Civil Procedure
section 473.5

"When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered." (Code Civ. Proc., § 473.5, subd. (a).)

"A notice of motion to set aside a default or default judgment and for leave to defend the action . . . shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc., § 473.5, subd. (b).)

"Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action." (Code Civ. Proc., § 473.5, subd. (c).)

Discussion

Defendant

moves the Court for an order, pursuant to Code of Civil Procedure section 473, subdivision (b), setting aside the clerk's default entered against it on December 2, 2025 on the basis of excusable neglect. Further, while not

expressly set forth in the notice of motion, Defendant moves to set aside the default pursuant to section 473.5. [FN1]

“Excusable

neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.” (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1419 [internal quotations and citation omitted].)

Defendant

acknowledges that service of the summons and complaint was validly effected on its designated agent for service of process, Christopher Mata (“Mata”), on September 23, 2025. (Luxenberg Decl., ¶¶ 4 and 8; Motion, 2:2-4, 3:15-16 and 5:7-14.) Defendant contends, however, that Mata did not forward the summons and complaint or otherwise notify Dr. Matthew Luxenberg (“Luxenberg”), one of its officers, of the existence of the lawsuit or any response deadline and was subsequently terminated in December 2025. (Luxenberg Decl., ¶¶ 6, 7, 9, and 10.) This failure, however, does not constitute “excusable neglect” under section 473(b). Defendant, after all, chose Mata as its agent for service of process.

Defendant

cites to Hu v. Fang (2002) 104 Cal.App.4th 61 for the proposition that “neglect by an agent for failing to act on service documents constitutes excusable neglect.” Hu, however, involved a mandatory attorney affidavit of fault scenario in which the attorney acknowledged responsibility for supervising the work of his paralegal, who had made mistakes in calendaring his court appearances. This is not a case involving a mandatory attorney affidavit of fault, nor is the agency relationship involved here one of attorney/paralegal.

Next,

Defendant seeks to have the default set aside on the basis of section 473.5. Section 473.5 is designed to provide relief where there has been proper service of summons but defendant nonetheless did not find out about the action in time to defend. (Weil & Brown, et al. CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2026) ¶ 5:420.) This arises typically involving case in which service was made via publication (Id.), which is not the case here. Further, the Court determines that the default was entered as a result of inexcusable neglect. If, as Defendant emphasizes, Luxenberg was the only individual “with authority to make legal decisions on behalf of the partnership, including decisions about retaining legal counsel, responding to

litigation, and authorizing legal strategy” (Luxenberg Decl., ¶ 2), it is curious to the Court why Luxenberg would not have been appointed as the agent for service of process in the first instance and why Defendant instead would rely upon Mata, an individual with a “documented pattern of failing to timely and accurately communicate information” regarding matters arising from management of the property (Id., ¶ 7).

Finally,

Defendant asserts that Plaintiff’s citation to Benjamin v. Dalmo Mfg. Co. (1948) 31 Cal.2d 523 actually supports its position. The Court disagrees. Benjamin involved a scenario in which defendant’s president and secretary were served with a copy of summons and complaint, the president directed the secretary to forward same to defendant’s attorney, the secretary “misunderstood” the directions given to her and believed the president directed her to file the papers in the office files and that, as a result of such a misunderstanding, the secretary failed to forward the papers to defendant’s attorney and default was entered. [FN2]

The

motion is denied.

[FN1] Defendant references section

473.5 on page 7, line 14 and page 13, line 20 in the memorandum of points and authorities, as well as in the caption.

[FN2] In that case, the court

ultimately reversed the trial court’s order setting aside the default and default judgment on the basis of unexplained delay in filing the motion.